

Frequently Asked Questions Re: FERPA and ZOOM Recordings

When is the recording of a class an “education record” protected by FERPA?

A Zoom recording retained by an instructor that contains material directly related to any identifiable student is an education record subject to FERPA’s protections. Under FERPA, such recordings may not be shared, beyond the students who were permitted to attend the recorded class, without the express written consent of the students who are the subject of the directly related material.

By way of further explanation, under FERPA, an “education record” is a record “maintained” by the college that is “directly related” to a student. An instructor retaining/archiving a video of the class satisfies the “maintained” by the college prong of FERPA. “Directly related” is not a defined term, but it is interpreted for purposes of recordings to mean that the video captures an act of which the student is a subject and the student is personally identifiable. Relevant examples include videos of student presentations and students asking questions in class. The mere presence of student images in a recording, without more, does not transform the recording into an “education record” for purposes of FERPA.

What is the best way for my class recordings to be shared beyond the students in the class without violating FERPA?

FERPA permits you to freely share recordings that include material “directly related” to one or more students by obtaining signed, written permission from your students to make the recordings available to others. This could be accomplished through a message in Brightspace to your students requesting their consent. For example:

I will be making a video recording of each of our classes held on Zoom. The recordings will be available for you to view throughout the semester. I also would like to make the recordings available for educational purposes to individuals outside the class, including students in other sections of the course, those enrolled in the course in future semesters and to others with an interest in the subject matter of the lectures.

Recordings that capture identifiable students asking questions or contributing in class are protected by the law known as FERPA, which governs the confidentiality of certain student records. With your consent, FERPA permits me to freely share class recordings without first engaging in the time-consuming task of editing out your valuable questions and comments or rendering you unidentifiable while speaking. I would

appreciate your consent to share the recordings with individuals outside the class who have an interest in the subject matter.

Please reply to this message and indicate by checking the appropriate box whether you consent to making the class recordings available to others for educational purposes:

☐

I consent

☐

I do not consent

Because the student is required to sign in to Brightspace with a unique identifier, there is no need for the student to also “sign” the consent with an actual signature.

If a student who has not consented to sharing the recordings asks a question during a recorded class, how can I make the recording available beyond the students in the class, without violating FERPA?

You will need to blur the student’s face or delete video of the student asking the question before making the video available to anyone outside the class. You can avoid doing any editing if you hit the Pause button before entertaining questions and then repeat the question(s) before answering, after you restart the recording. You can preserve the value of the question and answer by repeating the question before answering.

I teach multiple sections of the same course. For a variety of reasons, there is often unique material shared in the different sections that would be of interest to all of my students. Can I make unedited recordings from each section available to all my students enrolled in the course?

Under certain circumstances, yes. If you permit your students to attend any sections of the course you teach, regardless of the section in which they are enrolled, you can share the recordings of all sections with all students enrolled in your course. If students do not have permission to attend sections other than the one in which they are enrolled, they may not have access to unedited recordings from other sections if those recordings contain material “directly related” to any student. Finally, you can always freely share recordings that do not contain material directly related to any student or for which you have consent to share in the event there is directly related material.

Can I make recordings made this semester available to future classes?

If you have consent from students in the class to share the videos or the videos do not contain material directly related to any students, they can be freely used in future classes.